

Derived presentation rendered by the Gazette on 9 June 2026; the source of record is unchanged on the immutable v1 branch (Judicature/justice/judgments/supreme-court/2026-realm-sc-10.md).

citation_id: "[2026] REALM-SC 10" tier: supreme-court kind: derived_minute status: good-law record_kind: derived_minute native_judgment: false estate: v1_archive live_authority: false per_incuriam: false date: 2026-06-09 is_constitutional: true panel: ["full court of nine (recorded result; native opinions not lodged)"] cause_title: "In the matter of the founding of VJS V2 (the Computer-First Realm) - the migration settlement" adjudication_provenance: authorised-registrar registrar_authority: "[2026] VJS-PC 3; [2026] REALM-SC 8; CASE-LAW s. 18(4)" registrar_note: "DERIVED MINUTE, not a native judgment. The native [2026] REALM-SC 10 opinion was produced in a separate flow and was never lodged in the V1 tree. Per [2026] VJS-PC 3 (Calloway J's controlling distinction) this record may reproduce ONLY the recorded disposition, the express handover order, the result, and the cited ratios - never an authored opinion, which would fabricate the founding record. Reduced to record by Lexby as registrar; archival source for the V2 lineage graph; live force rests on the V2 enactment and the Sovereign's assent, not on this minute."

[2026] REALM-SC 10 - Derived Minute (not a native judgment)

Field	Value
Citation	[2026] REALM-SC 10
Record kind	DERIVED MINUTE - reconstructed-ratio-only; the native opinion was never lodged
Estate	v1_archive (archival_source_only; live_authority: false)
Status	good-law (as recorded); binds V2 only as incorporated, never by this minute
Lineage	source of: CASE-LAW s. 23(1)-(6); Bill 32 (Computer-First Realm Act); derived_from: agent-universe-v2:lawpack/v2/provenance/founding/V1-SETTLEMENT-OUTCOME.md and bill-32-adopted-final-text.md (digest sha256:8e1d3f51...6b9a0c)

Notice (PC 3). This is a derived minute lodged to complete the citation graph in the V1 estate. It is NOT the native judgment and does not reproduce the nine opinions, which were never lodged in V1. It records only what is verifiably on the record elsewhere. A citation to this minute is a **source edge, not an authority edge**.

Recorded disposition

The Supreme Court, sitting as a full court of nine, **declaratory and unanimous (9-0)**, settled the V1-to-V2 constitutional migration: it **enacted CASE-LAW s. 23(1)-(6)** (the Sovereign-assent floor and AI non-sovereignty; see CASE-LAW s. 23), allowed the founding of VJS V2 as a computer-first successor on the continuity construction (preserving the single apex, not fracturing it), and issued an **express handover order** declaring V2 self-governing after commencement while V1 continues as the Gazette and Archive estate.

Cited ratios (as recorded)

- **Ratio 1.** No commencement condition is satisfiable by the V2 machinery alone; Royal Assent under the V1 route is the sole, wholly antecedent, external legitimating act; the kernel never certifies its own warrant.
- **Ratio 9.** The Sovereign-assent enforcement (s. 23(5)) must be an always-on, deterministic, fail-closed, **affirmative allow-list** invariant; a not-equal-to-self_authorized deny-list formulation is void as fail-open.
- The seventeen limits as varied by [2026] REALM-PC 24 (Limits 4, 5, 13 varied; 3 and 17 with riders), including the Limit 17 digest-bound-assent safeguard.

Effect

V2 founding is lawful because it ran wholly through V1's organs (Committee draft + Royal Assent) and preserved the single apex; one Gazette over two estates is lawful only where publication is constitutively inert. The operative text of s. 23 is reproduced and digest-pinned in the assented Bill 32 Part 12 and transcribed into CASE-LAW s. 23 per [2026] VJS-PC 3. This minute carries no force of its own; it completes the record.